

THE ANDHRA PRADESH ANIMAL FEED (REGULATION OF MANUFACTURE, QUALITY CONTROL, SALE AND DISTRIBUTION) ACT, 2020

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State of Andhra Pradesh - Act

THE ANDHRA PRADESH ANIMAL FEED (REGULATION OF MANUFACTURE, QUALITY CONTROL, SALE AND DISTRIBUTION) ACT, 2020

ANDHRA PRADESH

India

THE ANDHRA PRADESH ANIMAL FEED (REGULATION OF MANUFACTURE, QUALITY CONTROL, SALE AND DISTRIBUTION) ACT, 2020

Act 37 of 2020

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AN ACT TO PROVIDE A MECHANISM TO REGULATE AND SUPERVISE THE MANUFACTURE, QUALITY CONTROL, DISTRIBUTION AND SALE OF ANIMAL FEED IN THE STATE OF ANDHRA PRADESH AND TO PROVIDE FOR MATTERS CONNECTED THEREWITH OR INCIDENTAL THERETO.

Be it enacted by the Legislature of the State of Andhra Pradesh in the Seventy First Year of the Republic of India, as follows:-

Chapter I

PRELIMINARY

1.

Short title, extent and commencement -

(1)

This Act may be called the Andhra Pradesh Animal Feed (Regulation of Manufacture, Quality Control, Sale and Distribution) Act, 2020.

(2)

It extends to the whole of the State of Andhra Pradesh.

(3)

It shall come into force on such date as the State Government may, by notification, appoint.

2.

Definitions -

In this Act, unless the context otherwise requires,-

(1)

"Act" means the Andhra Pradesh Animal Feed (Regulation of Manufacture, Quality Control, Sale and Distribution) Act, 2020;

(2)

"Animal" includes any species of livestock, pet animal and poultry;

(3)

"Animal Feed" means any simple or compounded product which is grounded, pelleted, crumbled or mixed, balanced for various nutrients as per the laid down specification, intended to supply wholly or partly the nutritional requirements of animal or poultry and which on being fed to them contribute to their maintenance, growth and productive capacity and includes feed additives; "Animal Feed" under this Act includes the following:

(i)

Calf starter meal from the age of approximately eight weeks and up to approximately twenty six weeks and calf growth meal from the age of approximately twenty six weeks and up to approximately one hundred eight weeks;

(ii)

Compounded cattle feed for cattle and buffaloes from the age of approximately above one hundred eight weeks;

(iii)

Pre mixed and formulated compounded feed in mash, pellets or crumbles form balanced for various nutrients as per the Bureau of Indian Standards (BIS) laid down specifications, intended for the feeding of livestock, pet animal and poultry;

(iv)

Proprietary feed developed through R&D efforts which includes bypass protein, bypass fat, Urea molasses, mineral block, urea molasses liquid feed, mineral salt lick, straw and other roughage based fodder blocks and other supplements including feed additives; and

(v)

Mineral mixture;

(4)

"Animal feed inspector" means any officer of Animal Husbandry Department who is designated as Animal Feed Inspector by Controlling authority;

(5)

"Animal feed analysis" means procedures of animal feed analysis to verify moisture, crude protein, crude fiber, Acid insoluble ash, Gross energy, amino acids and other parameters of animal feed sample;

(6)

"Animal feed analyst" means the person carrying out the Animal feed analysis in the animal feed analysis laboratory;

(7)

"Animal feed analytical laboratory" means the laboratory notified for the purpose of analyzing the samples of animal feed;

(8)

"Animal feed business" means animal feed manufacture, dealership/ distribution, sale and all allied activities;

(9)

?Animal feed business operations? means all the operations/ activities under taken for carrying out animal feed business;

(10)

?Animal feed business operator? means any person/company/ firm carrying out animal feed business operations;

(11)

?Adulterated feed? in relation to feed stuff and compound feed means any feed stuff or compound feed which: does not conform to the declaration made regarding its nature, substance or quality; or addition of an impure, cheap or unnecessary ingredient to cheat or cheapen a preparation; or is manufactured by the use of dye or coloring agent to impart a certain color; or does not conform to the prescribed standards; or is spoiled or damaged or is fungus-infested and is harmful for animals;

(12)

?Animal Feed Quality Control Committee? means the committee constituted by the Government under this Act for assisting the controlling authority in all matters relating to the administration of this Act in the State;

(13)

?Authorized Agent? means any person involved in sale of Animal feed under an agreement or contract with the manufacturers or dealer;

(14)

?Cake? means the residual mass resulting from pressing of seeds, meat or fish after extraction of oil, fat or any other liquid;

(15)

?Company? means company as defined in the Companies Act, 2013, (Central Act No.18 of 2013);

(16)

?Complete feed? or ?Total Mixed Ration? (TMR) means a nutritionally adequate feed for animals prepared using ground roughages and concentrate feed ingredients in suitable combination to be fed as a single feed mix in mash, pellet or block form;

(17)

?Compound feed? means any ground, pelleted, crumbled or mixture feed intended for the feeding of animals and includes:

the poultry compound feed as may be prescribed for broiler, layer and breeder based on age;

livestock compound feed according to growth, productive and reproductive status, as may be prescribed; and

feed for pet and other animals, as may be prescribed;

(18)

?Controlling Authority? means the officer who is responsible for the overall enforcement of this Act in the entire State of Andhra Pradesh;

(19)

?Court? means any Court not less than a Court of Judicial Magistrate of First Class in the State of Andhra Pradesh;

(20)

?Crumble? means pelleted feed reduced to granular form;

(21)

?Customer formula feed? means any type of mixture which may contain more than one feed stuff designed as per customer choice;

(22)

?Distributor/Dealer? means the person/company/firm who distributes the animal feed/sells the animal feed on wholesale basis to vendors for retail sales;

(23)

?Drug? means a substance Intended for use in the diagnosis, cure, mitigation, treatment or prevention of disease in animals;

other than food intended to affect the structure or any function of the body of animals;

(24)

?Expert Committee? means the Committee of Experts constituted with eminent nutritionist taken from the: ICAR

institutes; State Agricultural Universities; Feed Industry and Officials of Government Departments;

(25)

?Feed Additive? means a substance or combination of substances added in traces to the basic feed mix or parts thereof to obtain a specific biological growth and satisfy certain production needs;

(26)

?Feed mill? means an automatic or semi-automatic plant for manufacturing of compound feed, complete feed or customer formula feed;

(27)

?Feed ingredient? means component part, constituent, or any combination /mixture added to and comprising the animal food;

(28)

?Feed stuff? means edible material(s) which are consumed by animals and contribute energy and/or nutrients to the animals diet;

(29)

?Firm? means a firm / partnership firm registered under the Indian Partnership Act, 1932, (Central Act No.9 of 1932);

(30)

?Form? means a form specified in Schedule I;

(31)

?Government? means the Government of Andhra Pradesh;

(32)

?Importer" means any person who imports any animal feed for the purpose of sale or supply in India;

(33)

?Laboratory? means any laboratory authorized by the Registering Authority from time to time for the purpose of analyzing the samples of animal feed as under section 25;

(34)

?License? means any license given under section (8) in favour of any person / company / firm for carrying out Animal feed business operations;

(35)

?Licensee? means a person /company/firm to whom a license has been granted for manufacturing or processing pre-mixed Animal feed and Mineral mixture;

(36)

?Licensing authority? means the officer who is empowered to grant licenses to Animal feed business operators under this Act;

(37)

?Manufacturer? means the person/company/firm engaged in the manufacturing or processing of pre-mixed Animal feed and Mineral mixture;

(38)

?Meal? means an ingredient which has been grounded or otherwise reduced in particle size for consumption by animals;

(39)

?Micro-ingredients? mean vitamins, amino acids, minerals, antibiotics, drugs and other feed additives normally required in trace amounts and measured as per national and international standards;

(40)

?Mineral Mixture? means a blend of essential macro and micro mineral elements with or without common salt in powder form, used for supplementing the ration;

(41)

?Misbranded? means misuse of registered trade name;

(42)

?Notification? means a notification published in the Andhra Pradesh Gazette and the word ?Notified? shall be construed accordingly;

(43)

?Pellet? means agglomerated feeds formed by compacting and forcing through die openings by any mechanical process;

(44)

?Prescribed? means prescribed by rules made under the Act;

(45)

?Registering/licensing authority? means the person appointed by the State Government by notification, to exercise the powers and perform the functions of a licensing authority under this Act or the rules made there under;

(46)

?Registration Certificate? means a registration certificate under this Act;

(47)

?Referral Laboratory? means the Laboratory for the purpose of analyzing the referral samples of animal feed in case of disputes;

(48)

?Silage? means anaerobically preserved fermented fodder or feed stuff prepared and preserved through a prescribed process with or without adding inoculum for feeding ruminants;

(49)

?Standard Animal feed or Mineral mixture? means any Animal feed or Mineral mixture complying standards prescribed under this Act;

(50)

?Sub-standard Animal feed or Mineral mixture? means any Animal feed or Mineral mixture not in compliance with the standards prescribed under the Act and Rules made there under;

(51)

?Vendor? means any person/company/firm to whom any approved animal feed is sold or delivered by the manufacturer or importer, for the purpose of sale by retail; of Animal feed or Mineral mixture to farmers/end users;

(52)

?Trader? means any person/company/firm who imports animal feed or Mineral mixture for the purpose of sale by retail.

Chapter II

CONTROLLING AUTHORITY / LICENSING AUTHORITY AND ANIMAL FEED QUALITY CONTROL COMMITTEE

3.

Controlling Authority -

The Director of Animal Husbandry shall be the Controlling Authority under this Act.

4.

Licensing Authority -

The District Collector/Joint Director (AH) or any officer empowered by the Controlling Authority shall be the licensing authority under this Act.

5.

Powers of Licensing Authority -

The Registering/licensing authority or Animal feed inspector authorized by controlling authority or any officer authorized on behalf may, with a view to securing compliance with the provisions of this Act,-

(i)

require any authorized dealer or agent or manufacturer to give any information in his possession with respect to the manufacture, processing, sale, distribution of animal feed;

(ii)

enter upon and inspect any premises where items are manufactured or processed or stocked or exhibited for sale, at any time during the business hours with a view to satisfying himself that the provisions of this Act are being complied with;

(iii)

On giving a proper receipt, seize or detain any item that is being processed, marketed, packed, labeled or sold in contravention of the said provisions of the Act;

(iv)

Seize or detain, on giving a proper receipt, any raw material, document, account book or other relevant evidence

connected with the manufacture, processing or sale in respect of which he has reasons to believe that a contravention of this Act has been committed;

(v)

Inspect any books or other documents relating to the manufacture, processing or sale of animal feed;

(vi)

Collect samples of animal feed intended or exposed for sale or under dispatch or delivery to any dealer or agent for the purpose of sale and have such samples analyzed at an authorized laboratory;

(vii)

By an order in writing, impose temporary ban on manufacture or processing or distribution or sale of animal feed in respect of which he has reasons to believe that any of the provisions of this Act has been contravened.

(viii)

The ban imposed under clause (vii) shall remain in force for a period of three months or till the issue is settled after enquiry, whichever is earlier.

(ix)

Every person, if so required by the Registering/licensing authority or the officer in this section, shall be bound to afford all necessary facilities to the Registering/licensing authority or such officer for the purpose of enabling the Registering/licensing authority or such officer to exercise the powers under clause (ii);

(x)

The Registering/licensing authority or the officer, may with a view to securing compliance with this Act or to satisfy himself that any such provisions has been complied with;

(xi)

The collected samples of animal feed that shall be divided into three parts. Each part shall be marked (coded), sealed, signed and fastened in air tight containers/bags in a manner prescribed so that nature and character of the content may not change, mentioning the date and time of sampling. Out of the three parts, one shall be forwarded for analysis to the laboratories authorized in that behalf by the Registering/ licensing authority or the officer in this section, one shall be delivered to the person from whom the sample was taken and one shall be kept by the Registering/licensing authority or the officer in this section for use in case a re-test of the sample is required. The Registering/licensing authority or the officer in this section shall prepare in such form as may be prescribed, a declaration in triplicate containing full particulars relating to the samples collected for quality monitoring or samples seized by him and such declaration shall be signed or marked by both the Registering/licensing authority or the officer in this section authorized and the person from whose possession, custody or control the animal feed has been collected /seized, and a copy thereof shall be given to such person.

Provided that when a sample is taken, from the stock in the possession of an authorized agent, the authorized agent shall be bound to give the name and such other particulars of the person on whose behalf such stock is held by him, as the Registering/licensing authority or the officer in this section may require.

(xii)

Every holder of a license certificate shall be bound by any direction or order issued by the Registering/licensing authority or the officer in this section in pursuance of any of the provisions of this Act and shall comply with such directions or orders and any failure on his/her part to comply with such direction or order shall be deemed to be a contravention of this Act.

(xiii)

The provisions of the Code of Criminal Procedures, 1973 (Central Act 2 of 1974) relating to search and seizure shall, so far as may be, apply to searches and seizures under this Clause.

6.

Registration for Manufacture, Sale and Distribution of animal feed and mineral mixture -

(1)

No person shall carry on business of manufacture, sale or distribution in any manner of items except under and in accordance with the terms and conditions of a license certificate issued by the licensing authority.

Provided that Animal feed business operators already carrying on business of manufacture, sale or distribution shall obtain license as may be prescribed from the date of commencement of this Act.

(2)

A separate registration shall be necessary for each place of business or manufacture.

7.

Application for license of animal feed and fee for license -

(1)

Any person desirous of registering and obtaining manufacturing license for any animal feed item for sale shall make application to the Registering/licensing authority or person authorized or the officer authorized on his behalf in Form ?A?.

(2)

Any person desirous to sell feed which is manufactured outside the State, shall make application for trading license in Form ?A? to the Registering/licensing authority or person authorized or the officer authorized on his behalf.

(3)

An application under sub-section (1) shall contain the following particulars:

(a)

The name and address of the applicant;

(b)

Proposed trade name;

(c)

A copy of the draft print or the label which shall be affixed on any container in which feed or finished product shall be sold;

(d)

Sample of the container in which such animal feed or mineral mixture shall be sold ;

(e)

Display on the container a statement of the composition of items;

(f)

Such other information as may be required by the Registering/ licensing authority or the officer authorized on his behalf.

(4)

Every application made under sub-section (1) shall be accompanied by the fee specified in sub-section (7);

(5)

If application is not submitted for license within the time limit as prescribed under section 6(1), the Licensing Authority can order for stopping all animal feed business operations being undertaken by the person/company/ firm;

(6)

Until the time of receiving the order of acceptance or rejection of application for license made under sub-section (5), the person/ company/firm may continue to perform animal feed business operations.

(7)

License Fee shall be as prescribed in rules made from time to time and shall be credited to the green channel PD account of the controlling authority;

(8)

Where an application for the registration & grant of a license is rejected, the license fee paid by the applicant shall be refunded.

8.

Process of issue of license -

(1)

Any person who wishes to start a new Animal Feed Business Operations/ any firm registered under Partnership Act,1932 (Central Act 9 of 1932)/ any company registered under Companies Act,2013 (Central Act 18 of 2013) which desires to start new Animal Feed Business Operations shall apply for the license under prescribed category of Animal Feed Business Operations along with the prescribed license fee to the Licensing Authority in form ?A?.

Provided that, in case if any person/firm/company wishes to undertake more than one Animal Feed Business Operations shall need to tick concerned business operations in the application and need to remit license fee for each type of business operation separately;

(2)

If any person/firm, carrying out the Animal Feed Business Operations without any license immediately before

commencement of this law, the person /company/firm shall apply to the Licensing Authority within a period of four (4)

months from the appointed date as prescribed in form ?A?.

(i)

If application is not submitted for license within the time limit as prescribed under sub-section (2) the Licensing Authority can order for stopping all Animal Feed Business Operations being undertaken by the person/company/ firm.

(ii)

Until the time of receiving the order of acceptance or rejection of application for license made under clause (i), the person/ company/firm may continue to perform animal feed business operations.

(3)

If any application under sub-section (1) is submitted, the Licensing Authority:-

(i)

If satisfied that the applicant has fulfilled all the terms and conditions of application for carrying out the Animal Feed Business Operations, the Licensing Authority shall issue the license in form ?B? within fifteen (15) days from the date of application; or

(ii)

If the Licensing Authority is of the opinion that the applicant has not fulfilled majority of the prescribed terms and conditions, the applicant shall be informed the same and be given an opportunity to furnish documents before rejecting the application within fifteen (15) days from the date of receipt of letter issued by licensing authority;

(iii)

If acceptance or rejection of license application is not communicated within the stipulated time of fifteen (15) days, the license shall be deemed to be issued;

(4)

The licensing authority shall make sure all the applications for issuance of license are in full shape so that the rate of rejection is as minimum as possible. The licensing authority shall facilitate the application process and shall render all possible support and assistance to the applicants.

(5)

Subject to the provisions of this section the issue of license shall be valid for life time for domestic and export oriented business operations.

9.

Refuse to grant a license -

(1)

The Registering/licensing authority may refuse to grant a license to any applicant if,-

(i)

The application is defective in any respect;

(ii)

The license fee has not been paid;

(iii)

The applicant doesn?t under take to manufacture or process the feed in conformity with the provisions of the Act;

(iv)

The applicant is not solvent;

(v)

Whenever the license was cancelled; or

(vi)

The applicant doesn?t have the prescribed machinery.

(2)

Registering/licensing authority, while refusing the registration and grant a license, shall specify the reasons for such refusal in his order and shall communicate the order to the applicant.

10.

Duplicate License certificate -

If a license certificate issued under this order is defaced, lost or destroyed, the Registering/licensing authority may if

satisfied, grant a duplicate registration certificate to the applicant on payment of a fee as may be prescribed.

11.

Cancellation of License -

(1)

Where any person contravene any provisions of the Act or any Rule made there under, the Registering/licensing authority by order, can cancel or suspend the license issued under section 8;

(2)

No order under sub-section (1) shall be made against the license except after notice to him to show cause within such period as may be specified in the notice as to why such order should not be made and except on his failure to show cause within such period or on his not showing sufficient cause;

(3)

Where the Registering/licensing authority cancel or suspends any license issued in respect of any approved Animal feed or Mineral mixture under sub-section (1) such Animal feed or mineral mixture manufactured by such license shall cease to be an approved Animal feed or mineral mixture;

(4)

Every cancellation or suspension under sub-section (1) shall be by order published in the gazette and in the largely circulated Telugu and English newspaper.

12.

Animal Feed Quality Control Committee -

(1)

The Government shall by notification constitute the Animal Feed Quality Control Committee to advise the Controlling Authority on all matters relating to registration, licensing and quality control in Animal feed business operations and to enforce the provisions of the Act and the rules made there under. This Committee shall consist of the following members, namely:

(a)

Dean, Faculty of Veterinary Science, Sri Venkateswara Veterinary University, Tirupati ? Chairman of the committee;

(b)

Professor & University Head, Department of Animal Nutrition from Sri Venkateswara Veterinary University, Tirupati ? Ex-Officio Member.

(c)

Additional Director (Planning), Directorate of Animal Husbandry, Andhra Pradesh (Member Convener) - Ex-Officio Member.

(d)

Joint Director, Veterinary Biologicals Research Institute, Vijayawada, Animal Husbandry Department - Ex-Officio Member.

(e)

One member from FSSAI, not below the rank of Assistant Director - Ex-Officio Member.

(f)

One member from EIA, not below the rank of Assistant Director - Ex-Officio Member.

(g)

One expert from Directorate of Poultry Research (DPR), Hyderabad - Ex-Officio Member.

(h)

One member from Livestock and Poultry Feed manufacturers nominated by the Government ? Non Official Member.

(i)

One member from Progressive dairy farmers nominated by the Government - Non Official Member.

(j)

One member from Andhra Pradesh Poultry Federation - Non Official Member.

Explanation:

(i)

Ex-officio members shall hold office, as long as he/she holds the appointment by virtue of which his/her nomination was made.

(ii)

Non-official member may, unless his/her seat become vacant either by resignation or otherwise, be entitled to hold office for a period of two years from the date of assumption.

(2)

Meetings of the Committee:

(i)

The quorum for any meeting of the Committee shall be four members.

(ii)

Dean, Faculty of Veterinary Science, Sri Venkateswara Veterinary University, Tirupati shall, if present, preside at all meetings of the Committee.

(iii)

In the absence of the Dean, Faculty of Veterinary Science, Sri Venkateswara Veterinary University, Tirupati from any such meeting, the members present shall elect one of the members to preside at such meeting.

(iv)

Every member, other than the Dean, Faculty of Veterinary Science, Sri Venkateswara Veterinary University, Tirupati, shall, unless he vacates office earlier by death, resignation or removal by the Government, hold office for a period of three years from the date of appointment to such office:

Provided that a member appointed in place of a member who dies or resigns or otherwise vacates office, shall, unless he earlier vacates office hold office for the unexpired part of the term of office of the member whom he succeeds.

(v)

The Government may, by Order published in the Gazette, remove any member other than the Dean, from office, without assigning any reason therefore and such removal shall not be called in question in any court or tribunal.

(vi)

Any member other than the Dean, Faculty of Veterinary Science, Sri Venkateswara Veterinary University, Tirupati vacating office by the effluxion of time shall be eligible for reappointment.

(vii)

If any member other than the Dean, Faculty of Veterinary Science, Sri Venkateswara Veterinary University, Tirupati is unable at any time to perform the duties of his office by reason of absence or incapacity the Government may appoint some other person to act in his place during such period in like manner as such member was appointed in accordance with the provisions of sub-section (1).

(3)

The Animal Feed Quality Control Committee may make guidelines in respect of all or any of the following matters:

(i)

the procedure to be followed at its meetings;

(ii)

the conduct of its business; and

(iii)

All matters connected with or incidental to the discharge of Its functions.

(4)

The functions of the Committee shall be,-

(i)

to advise the Registering/Licensing Authority on any matter relating to the licensing of animal feed and the manufacture, storage and preparation of animal feed for sale and the sale of approved animal feed;

(ii)

to take such other steps as may be prescribed that are connected with or incidental to the aforesaid matters;

(iii)

to recommend on quality of animal feed;

(iv)

to recommend on modifications, amendments, deletions, additions to procedures for manufacture for sale, distribution and imposition of quality control measures;

(v)

to recommend on fees structure for issue of manufacture license for animal feed, fee of manufacture license, issue of duplicate license;

(vi)

to recommend on test procedures for quality control of animal feeds.

Chapter III

MINIMUM STANDARDS & SPECIFICATIONS AND EXPERT COMMITTEE

13.

Condition for manufacturing animal feed or mineral mixture -

(1)

An authorized license holder shall not use,-

(i)

Ingredients, such as, rice husk, castor husk/meal, jatropha cake or meal, ground nut hulls, saw dust and such other ingredients, as may be specified by the expert committee from time to time, for manufacture of Animal feed or mineral mixture;

(ii)

Ingredients of animal origin and mineral salts with low bio-availability, as may be specified by the expert committee from time to time, for manufacture of Animal feed or mineral mixture;

(iii)

Urea or any other non-protein nitrogen compounds including ammonium salts for manufacture of feeds for young stock and poultry feed. However feed for adult cattle may contain urea, calcite powder and common salt as specified from time to time.

(2)

The standard of Animal feed or mineral mixture manufacture or process by a licensee shall be, as may be prescribed and every licensee shall be bound to adhere to the prescribed standards;

(3)

No licensee shall manufacture any type of Animal feed or mineral mixture mentioned in Schedule-I unless it conforms to the prescribed standards;

(4)

The Animal feed or mineral mixture manufactured or processed by a licensee shall be tested in the prescribed manner.

14.

Specifications/Standards regarding manufacturing, sale or distribution of animal feed and mineral mixture -

(1)

The Specifications/Standards prescribed in sub-section(2) shall be applicable to,-

(i)

the Animal feed manufactured in the State and sold within the State;

(ii)

Animal feed manufactured in other States and brought into the State for distribution/ sales;

(iii)

manufactured in other countries and imported into the State for distribution and sales in the State.

(2)

The manufacturer of Animal feed shall comply with the available Bureau of Indian Standards (BIS) for Livestock, Specifications recommended by Expert committee for Poultry and ICAR/AAFCO standards for pet animals amended from time to time;

(i)

In case BIS prepares standards for any new species, they shall be followed by the Animal feed manufacturers;

(ii)

In case of non-availability of BIS standards for any approved species, the Expert Committee constituted under section 15 shall approve new standards by following the procedure as may be prescribed;

(iii)

The Controlling authority shall do the needful for BIS approval of standards prepared under clause (ii);

(iv)

To suit to the local conditions/requirements, deviations with regard to few parameters of BIS standards like (a) Mash, pellet size, (b) packing material, (c) methods of analysis etc., may be permitted through Rules under this Act. Under any circumstances, all other quality standards like proximate composition etc., of Animal feed shall not be deviated;

(3)

Label of Animal Feed bag shall consist of all the information/details as may be prescribed;

(4)

The Animal feed shall not contain any prohibited antibiotics or pharmacologically active substances under any circumstances and shall be certified accordingly on the Animal feed bag;

(5)

Other additional criteria/parameters to be complied by the manufacturers/dealers/vendors of Animal feed/Animal feed ingredients as may be prescribed.

15.

Expert Committee -

(1)

The Government shall by notification constitute 'Expert Committee' with eminent nutritionists and shall consist of the following members, namely:

(a)

Associate Dean nominated by, Vice Chancellor, SVVU, Tirupati (Chairman) ;

(b)

Additional Director (Planning), Animal Husbandry Department, Government of AP (Member Convenor);

(c)

Professor, Animal Nutrition, SVVU, Tirupati;

(d)

Professor, Poultry Science, SVVU, Tirupati;

(e)

Principal Scientist (Poultry Nutrition) from Directorate of Poultry Research (DPR), Hyderabad;

(f)

Joint Director, Veterinary Biological Research Institute, Vijayawada;

(g)

One field Veterinarian with specialization in Animal Nutrition nominated by Controlling Authority.

(2)

Meetings of the Expert Committee:

(i)

The quorum for any meeting of the Committee shall be four members.

(ii)

The Associate Dean nominated by Vice-Chancellor, SVVU, Tirupati shall, if present, preside at all meetings of the Committee.

(iii)

In the absence of the Associate Dean from any such meeting, the members present shall elect one of the members to preside at such meeting.

(iv)

Every member, other than the Associate Dean, shall, unless he vacates office earlier by death, resignation or removal by the Government, hold office for a period of three years from the date of appointment to such office:

Provided that a member appointed in place of a member who dies or resigns or otherwise vacates office, shall, unless he earlier vacates office hold office for the unexpired part of the term of office of the member whom he succeeds.

(v)

The Government may, by Order published in the Gazette, remove any member other than the Associate Dean, from office, without assigning any reason therefore and such removal shall not be called in question in any court or tribunal.

(vi)

Any member other than the Associate Dean vacating office by the effluxion of time shall be eligible for reappointment.

(vii)

If any member other than the Associate Dean is unable at any time to perform the duties of his office by reason of absence or incapacity the Government may appoint some other person to act in his place during such period in like manner as such member was appointed in accordance with the provisions of sub-section (1).

(3)

The Committee may make guidelines in respect of all or any of the following matters:

(i)

The procedure to be followed at its meetings;

(ii)

The conduct of its business; and

(iii)

All matters connected with or incidental to the discharge of its functions.

(4)

The functions of the Committee shall be,-

(i)

to fix the minimum standard as to the composition, strength, quality and purity of any approved animal feed for which specifications are not available;

(ii)

to fix the maximum level of deleterious or inert material allowable in approved animal feed;

(iii)

to recommend to the Controller of Imports and Exports on matters relating to import of animal feed and export of approved animal feed and animal feed ingredients;

(iv)

to set out the manner in which approved animal feed shall be analysed; and

(v)

to take such other steps as may be prescribed that are connected with or incidental to the aforesaid matters.

16.

Approved animal feed and mineral mixture -

The Licensing authority shall declare any animal feed or mineral mixture manufactured for sale on a licence issued under section 8 to be an approved animal feed or mineral mixture and assign a number in respect of approved Animal feed or mineral mixture.

Chapter-IV-PACKING, MARKING AND LABELLING

17.

Packing, marking and labeling -

Every holder of a license certificate shall comply with the following requirements:

(i)

Animal feed shall be packed in clean and sound jute or HDPE or Cloth or paper bags and shall be labeled in Form D, in such quantities as may be specified by licensing authority. The mouth of each bag shall be machine stitched;

(ii)

Mineral mixture shall be packed in moisture proof sound and clean bags and shall be labeled in Form E, free from causal agents of infectious diseases and parasites in such quantities as may be specified by the Registering/licensing authority;

(iii)

Every bag in which Animal feed or mineral mixture is packed shall bear the license number, name and business address and trade name of the manufacture, marks approved by the Registering/licensing authority, net weight in kgs at the time of packing and the maximum retail price;

(iv)

Batch number, date of manufacture, address of manufacturer, license number, the nutrient composition, and such other particulars as may be stipulated by the Registering/ licensing authority;

(v)

Each bag in which mineral mixture is packed, shall contain a printed format of which shall be approved by the Registering/ licensing authority, indicating batch number, date of manufacture, address of manufacturer, license number,

percentage of various mineral elements and such other particulars as may be stipulated by the Registering/ licensing authority;

(vi)

The labels on package or container shall not contain any statement, claim, design, or device which is false or misleading;

18.

Alteration in container or composition -

No alteration in the container, print or label or composition or any approved Animal feed or mineral mixture shall be made by any person unless an application is made in that behalf and prior approval obtained from the Registering/licensing authority in respect of such intended alteration.

Chapter V

REGULATION OF SALE

19.

Regulation of sale of animal feed or mineral mixture -

No person shall sell or expose for sale or deliver to any authorized agent or dispatch for the purpose of sale any Animal feed or mineral mixture, which is not in confirmative with the provisions of section 14.

20.

Prohibition on manufacture, sale and distribution of approved animal feed or mineral mixture -

(1)

No person shall manufacture, process or store any approved Animal feed or mineral mixture for sale or sell or distribute,-

(i)

If It contains any deleterious substance or toxins or anti- nutritional factors or inert material in excess of the amounts as may be stipulated by the committee constituted under section 15 ;

(ii)

If adulterated or misbranding is detected;

(iii)

If in contravention or in violation of the provisions of the Act or any rules made there under;

(iv)

No advertisement shall be made of any feed, which is misleading or deceiving or contravenes the provisions of this Act and the rules made there under.

(2)

No person shall engage himself in any unfair trade practice for purpose of promoting the sale, supply, use and consumption of articles of feed or adopt any unfair or deceptive practice including the practice of making any statement, whether orally or in writing or by visible representation which ?

(i)

falsely represents that the feeds are of a particular standard, quality, quantity or grade-composition;

(ii)

makes a false or misleading representation concerning the need for, or the usefulness;

(iii)

gives to the public any guarantee of the efficacy that is not based on an adequate or scientific justification thereof:

21.

Approved animal feed or mineral mixture deemed to be adulterated -

Every approved Animal feed or mineral mixture shall be deemed to be adulterated within the meaning of this Act, if its composition, strength, quality and purity fails to confirm to the standards prescribed under this Act.

22.

Approved animal feed or mineral mixture deemed to be misbranded -

An approved Animal feed or mineral mixture shall be deemed to be misbranded within the meaning of this Act;

(i)

If the print on any container or the label or package of any approved Animal feed or mineral mixture bears any statement, device that is false, misleading, deceptive or likely to create an erroneous impression, regarding its

composition, strength, quality, purity and safety;

(ii)

If it is an imitation or substitution to resemble in such a manner as is likely to deceive, another already approved/ licensed Animal feed or mineral mixture under the name by which it is sold or offered or exposed for sale and is not labeled plainly or such label is not affixed conspicuously so as to indicate its true character;

(iii)

If it is stated to be a product of a place or country of which it is not truly a product;

(iv)

If it is not printed or labeled in accordance with the requirements under this Act.

23.

Minimum standards to be maintained and Responsibilities of the Feed business operator -

(1)

Where a minimum standard is fixed under section 14 for any approved Animal feed or mineral mixture, no authorized licensee can manufacture or sell or distribute or advertise unless it is in compliance with approved standards.

(2)

Every feed business operator shall ensure that the ingredients of feed satisfy the requirements of this Act and the rules made there under at all stages of production, processing, import, distribution and sale within the businesses under his control.

(3)

No feed business operator shall himself or by any person on his behalf manufacture, store, sell or distribute any ingredient of feed which is for the time being prohibited by the Feed Authority or the Central Government or the State Government in the interest of public health;

(4)

No feed business operator shall employ any person who is suffering from infectious, contagious or loathsome disease.

(5)

No feed business operator shall sell or offer for sale any article of feed to any vendor unless he also gives a guarantee in writing in the form specified by rules about the nature and quality of such article to the vendor:

Provided that a bill, cash memo, or invoice in respect of the sale of any article of animal feed given by a feed business operator to the vendor shall be deemed to be a guarantee under this section, even if a guarantee in the specified form is not included in the bill, cash memo or invoice.

(6)

Where any animal feed which is unsafe is part of a batch, lot or consignment of animal feed of the same class or description, it shall be presumed that all the feed in that batch, lot or consignment is also unsafe, unless following a detailed assessment within a specified time, it is found that there is no evidence that the rest of the batch, lot or consignment is unsafe:

Provided that any conformity of feed with specific provisions applicable to that feed shall be without prejudice to the competent authorities taking appropriate measures to impose restrictions on that feed being placed on the market or to require its withdrawal from the market for the reasons to be recorded in writing where such authorities suspect that, despite the conformity, the feed is unsafe.

24.

Warranty and Feed recall procedure -

No manufacturer or distributor or agent or dealer of any approved Animal feed or mineral mixture shall sell unless the guaranteed analysis is given on ?as is? or ?as fed? basis and shall be guilty of an offence under this Act;

(i)

If a feed business operator considers or has reasons to believe that a feed which he has processed, manufactured or distributed is not in compliance with this Act, or the rules made there under, he shall immediately initiate procedures to withdraw the feed in question from the market and consumers indicating reasons for its withdrawal and inform the competent authorities thereof.

(ii)

A feed business operator shall immediately inform the competent authorities and co-operate with them, if he considers or has reasons to believe that a feed which he has placed on the market may be unsafe for the consumers.

Chapter VI

ANIMAL FEED SAMPLE ANALYTICAL LABORATORIES AND REPORTS

25.

Animal feed analytical laboratories and referral laboratory -

The Government will notify approved animal feed analytical laboratories and referral laboratory.

26.

Analysis of samples -

(1)

Where an authorized officer has reason to doubt the genuineness of any approved Animal feed or mineral mixture and is of opinion that it requires analysis he shall , in the presence of the manufacturer, importer or seller or the agent of such manufacturer, as the case may be, obtain a sample and shall forthwith his intention to submit such samples for analysis and forthwith divide the samples into three equal parts and cause each part to be marked and sealed separately in such manner as its nature will permit and shall deliver one of part to the manufacturer, importer or seller or the agent or dealer as the case may be, and one part to the notified laboratory and shall retain one part with the Registering/licensing authority;

(2)

In the event of dispute in respect of the result of an analysis, the licensing authority or authorized officer shall forward the samples in custody of licensing authority to Referral Laboratory as may be prescribed;

(3)

If any prosecution under this Act, the certificate of analysis issued by the referral laboratory shall be the conclusive evidence of the facts stated therein.

27.

Report of notified animal feed sample analytical laboratories -

(1)

The Officer-in-charge of notified Animal Feed Analytical Laboratory upon receipt of the sample shall analyse and deliver the report of analysis in duplicate to the authorized officer;

(2)

The Authorized officer shall serve a copy of the report to the person from whom the sample has been taken under proper acknowledgement;

(3)

Before institution of prosecution under this Act, the manufacturer/dealer/vendor of Animal feed and mineral mixture shall on payment of the prescribed fee, make an application within fifteen (15) days in the prescribed form to the Registering/licensing authority for analysis of the sample mentioned in section 26 (1) at referral laboratory as prescribed.

(4)

The referral laboratory shall analyse the sample and send the analysis report to the Registering /licensing authority in the prescribed form within the prescribed period from the date of receipt of the request from Registering/licensing authority;

(5)

On receipt of report from referral laboratory, licensing authority shall declare the result under sub-section (4) which shall be final;

(6)

Where the report declared by the licensing authority or authorized officer of referral laboratory under sub-section (4) is produced in any proceedings of the Court, it shall not be necessary in such proceedings to produce any sample or part thereof taken for analysis;

(7)

If adulteration is proved in the referral laboratory report, prosecution shall be instituted against the offender by the authorised officer as per the provisions of the Act.

Chapter VII

IMPORTS

28.

Examination of customs -

An officer authorized by the Special Chief Secretary/Principal Secretary/Secretary, AHDD & Fisheries, Government of Andhra Pradesh shall have a right to examine any customs entries of imports of any Animal feed or mineral mixture imported into Andhra Pradesh and forward such samples to the referral laboratory for analysis and report ;

(i)

In any case their samples are taken, such Animal feed or mineral mixture shall not be delivered to the importer or consigner until the referral laboratory has reported upon the sample taken.

(ii)

If the referral laboratory reports that, the Animal feed or mineral mixture does not confirm to the minimum standards fixed under section 14, such Animal feed or mineral mixture shall not be admitted into Andhra Pradesh for use as an approved Animal feed or mineral mixture.

Chapter VIII

OFFENCES AND PENALTIES

29.

Seizure of suspected approved animal feed or mineral mixture -

An authorized officer, if he has reason to believe that any approved Animal feed or mineral mixture is held or exposed or offered for sale in violation of the requirement of this Act, shall seize, hold such approved Animal feed or mineral mixture until a sample is analyzed in referral laboratory and orders are issued by the Special Chief Secretary/Principal Secretary/Secretary, Animal Husbandry, Dairy Development Fisheries (AHDD&F), Government of Andhra Pradesh for its disposal. Such approved animal feed or mineral mixture seized under this section may at the option of the authorized officer, be kept or stored in the building or placed where it was seized, or be removed to any place as may be determined by the Special Chief Secretary/Principal Secretary/Secretary, Animal Husbandry, Dairy Development Fisheries (AHDD&F), Government of Andhra Pradesh.

30.

Penalty for contravention of this Act ?

(1)

Every person who contravenes or is deemed to have contravened any of the provisions of this Act, any of the terms and conditions of the license certificate or fails to carry out any direction or order or request made or instructions given there under, shall be punishable as per the provisions of the rules under this Act;

(2)

Where an offence under this Act is committed by a body of persons, then

(i)

If that body of persons is a body corporate, every Director, Manager, Secretary or officer of that body corporate ; or

(ii)

If that body of persons is a firm, every partner of that firm, shall be deemed to be guilty of that offence;

Provided however, that no such persons shall be deemed to be guilty of an offence if he proves that such offence was committed without his knowledge or that he exercised due diligence to prevent the commission of the offence.

31.

Procedure for launching prosecution -

(1)

The Animal Feed Inspector shall be responsible for inspection of feed business, drawing samples and sending them to notified Animal Feed Analytical Laboratories for analysis.

(2)

The Feed Analyst after receiving the sample from the Animal Feed Inspector shall analyze the sample and send the analysis report mentioning method of sampling and analysis within prescribed period to the Animal Feed Inspector.

(3)

The Animal Feed Inspector after scrutiny of the report of Feed Analyst shall decide as to whether the contravention is punishable with imprisonment or fine only and in the case of contravention punishable with imprisonment, he shall send his recommendations within fourteen days to the Licensing Authority for sanctioning prosecution.

(4)

The Licensing Authority shall, if he so deems fit decide, within the period prescribed by the Government of Andhra Pradesh, as per the gravity of offence, whether the matter be referred to a court as per the rules provision of this Act.

(5)

The Licensing Authority shall communicate his decision to the concerned Animal Feed Inspector who shall launch prosecution before the court; and such communication shall also be sent to the purchaser if the sample was taken under section 29.

32.

General provisions relating to penalty -

While adjudging the quantum of penalty, the Animal Feed Inspector or the Tribunal, as the case may be, shall have due regard to the following:-

(a)

The amount of gain or unfair advantage, wherever quantifiable, made as a result of the contravention;

(b)

The Amount of loss caused or likely to cause to any person as a result of the contravention;

(c)

The repetitive nature of the contravention;

(d)

Whether the contravention is without his knowledge; and

(e)

Any other relevant factor.

33.

Penalty for selling feed not of the nature or substance or quality demanded -

Any person who sells to the purchaser's prejudice any feed which is not in compliance with the provisions of this Act or the rules made there under, or of the nature or substance or quality demanded by the purchaser, shall be liable to a penalty as may be prescribed.

34.

Penalty for substandard feed -

Any person who whether by himself or by any other person on his behalf manufactures for sale or stores or sells or distributes or imports any animal feed which is sub-standard, shall be liable to a penalty as may be prescribed.

35.

Penalty for misbranded feed -

Any person who whether by himself or by any other person on his behalf manufactures for sale or stores or sells or distributes or imports any animal feed which is misbranded, shall be liable to a penalty as may be prescribed.

36.

Penalty for misleading advertisement -

Any person who publishes, or is a party to the publication of an advertisement, which- (a) falsely describes any feed; or (b) is likely to mislead as to the nature or substance or quality of any feed or gives false guarantee, shall be liable to a penalty as may be prescribed.

37.

Penalty for feed containing extraneous matter -

Any person whether by himself or by any other person on his behalf manufactures for sale or stores or sells or distributes or imports any animal feed containing extraneous matter, shall be liable to a penalty as may be prescribed.

38.

Penalty for failure to comply with the directions of Animal Feed Inspector -

If a feed business operator or importer without reasonable ground, fails to comply with the requirements of this Act or the rules or orders issued there under, as directed by the Animal Feed Inspector, shall be cognizable offence and he/she shall be liable for rigorous imprisonment for a term not less than seven years and shall also be liable to fine as may be prescribed.

39.

Penalty for unhygienic or unsanitary processing or manufacturing of feed -

Any person who, whether by himself or by any other person on his behalf, manufactures or processes any animal feed under unhygienic or unsanitary conditions, shall be liable to penalty as may be prescribed.

40.

Penalty for contraventions for which no specific penalty is provided -

Whoever contravenes any provisions of this Act or the rules made there under, for the contravention of which no penalty has been separately provided in this Act, shall be liable to penalty as may be prescribed.

41.

Forfeiture -

The court which convicts any person of an offence under this Act may, in addition to the any of the penalties that the court may impose for such offence, order that such animal feed/mineral mixture in respect of which the offence was committed be seized and forfeited to the Government of Andhra Pradesh.

Chapter IX

APPEAL

42.

Appellate Authority -

(1)

Any person aggrieved by an order of the Registering/licensing authority refusing the grant of a license, cancelling or suspending a license under the provisions of this Act, may appeal to the Special Chief Secretary/Principal Secretary/Secretary, AHDD & Fisheries, Government of Andhra Pradesh, or his nominee, within thirty days from the date of receipt of order by him;

(2)

No order shall be made under this clause unless an aggrieved person has been given a reasonable opportunity of being heard;

(3)

Pending disposal of an appeal, the Special Chief Secretary/Principal Secretary/Secretary, AHDD & Fisheries, Government of Andhra Pradesh may direct that the order refusing to grant a license or the order cancelling or suspending a license shall not take effect until the appeal is disposed off;

(4)

The Special Chief Secretary/Principal Secretary/Secretary, AHDD & Fisheries, Government of Andhra Pradesh may, in dealing with any appeal preferred to him, may affirm vary or amend the order against which the appeal has been referred;

(5)

The decision of the Special Chief Secretary/Principal Secretary/Secretary, AHDD & Fisheries, Government of Andhra Pradesh upon an appeal shall be final and conclusive for all purposes what so ever, and shall not be called in question in any court of tribunal.

Chapter X

MISCELLANEOUS

43.

Protection for action taken in good faith -

No suit, prosecution or other legal proceedings shall be instituted against any person for any act done in good faith or purported to have been done under this Act or any rules made there under.

44.

Persons acting under this Act to be public servants -

Any person acting under this Act shall be deemed to be a public servant within the meaning of section 21 of the Indian Penal Code (Central Act No. 45 of 1860).

45.

Maintenance of registers and records -

The Registering/licensing authority may, by order in writing direct any approved manufacturer, agent or dealer to maintain such books, accounts and records relating to his business and in such form as may be prescribed in the provisions of rules of this Act.

47.

Submission of returns -

Every holder of valid license or registration certificate shall submit yearly returns in duplicate in respect of each class of approved Animal feed or mineral mixture processed by him in Form ?T?.

48.

Exemption -

Nothing in this Act shall apply,-

(1)

to any Animal feed or mineral mixture manufactured or processed by a person for the exclusive use in his own farm.

(2)

Animal feed manufactured and distributed by the ICAR/ SVVU/ Department of Animal Husbandry/and other government agencies/ institutions for the purpose of conducting Research & Development and field trials.

(3)

Animal feed manufactured by any person/firm/company on the return order by the ICAR/ SVVU/ Department of Animal Husbandry/and other government agencies/ institutions for the purpose of conducting Research & Development and field trials.

In case if such animal feed manufactured under sub-sections (2) and (3) is sold to any farmer/user on cost basis, the exemption given under sub-sections (2) and (3) shall be null and void.

48. On-line platform -

Online platform will be made available for issue of license and other procedures of this Act through software application.

49.

Powers to make rules -

The Government may, by notification, make rules for carrying out all or any of the purposes of this Act.

(1)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for,-

(i)

the functions of Licensing Authority;

(ii)

Notifying the feed analytical laboratories/referral laboratory;

(iii)

the functions of the referral laboratory;

(iv)

the procedure of collection, packing, sealing, marking / labelling, preservation, forwarding sample to notified and referral laboratories, storing and disposal of the samples collected under section 26;

(v)

the requirements which shall be complied by person/ firm carrying out the business of Animal feed and mineral mixture under section 23;

(vi)

the forms of application for the grant of a license under section 8, the particulars it may contain, the fees which should accompany it, the form of the License and the conditions subject to which the License may be granted;

(vii)

the standards to which Animal feed and mineral mixture should conform under section 14;

(viii)

the form and manner in which an appeal may be preferred and the procedure to be followed by the Appellate Authority in disposing the appeal;

(ix)

the form for forwarding the sample by authorised officer to notified animal feed analytical laboratory;

(x)

Form of report of the result of the analysis under section 27 and the fees payable in respect of such report;

(xi)

the records to be maintained by a person/firm carrying out the business referred to in section 45 and the particulars which such records shall contain;

(xii)

The procedure to issue of licences to Animal feed and Mineral Mixture Manufacturing and processing units, approved manufacturers & traders, dealers or agents;

(xiii)

The procedures for seizure, launching prosecution for offences and penalties for contravention of this Act;

(xiv)

Any other matter which is to be or may be prescribed.

(2)

Every rule made under this Act, shall, immediately after it is made, be laid down before the State Legislature, if it is in session, and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following the State Legislature agrees in making any modification in the rule or in the annulment of the rule, the rule shall, from the date on which the modification or annulment is notified, have effect only in such modified form or shall stand annulled as the case may be so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

50.

Power to remove difficulties -

(1)

If any difficulty arises in giving effect to the provisions of this Act, the State Government may, as occasion requires, by order published in the Andhra Pradesh Gazette, make such provision not inconsistent with the provisions of this Act, as appear to be necessary or expedient for removing the difficulty.

(2)

Every Order made under this section shall be laid, as soon as may be after it is made, before the State Legislature.

Schedule 1

FORM- A

(See Section 8(1))

APPLICATION FOR REGISTRATION UNDER THE ANDHRA PRADESH ANIMAL FEED (REGULATION OF MANUFACTURE, QUALITY CONTROL, SALE AND DISTRIBUTION) ACT, 2020.

MANUFACTURING / TRADING LICENSE

1. Applicant's Name:

2. Applicant's Full Address, Telephone Nos. Fax, email:

3. Name of the Managing Director, Directors, Proprietors, Partners, Owners etc:

4. Whether the Applicant is:

? Manufacturer

? Dealer/ Distributor

? Storage Agent (Tick mark the appropriate)

5. Description of the Animal feed which the applicant wishes to manufacture or process (as defined in the Act)

S.No.

Name of the item

Category

Quantity (MT/month)

6. Description of the Packing/labelling which the applicant wishes to use manufacture or process animal feed/s

S.N.o.

Name of the item

Category

Pack size/size

Packing material used

7. Plan of the factory and list of equipment

8. Whether any power is used in the manufacture of Animal feed/mineral Mixture. if so, state the exact Horse Power of the machine used.

9. Total quantity and value of Animal feed/mineral mixture if any, manufactured during the previous year

I/We hereby undertake to comply with the provisions of the Andhra Pradesh Animal feed (Regulation of Manufacture, Quality control, Sale and

Distribution) Act, 2020 and the rules made there under and the conditions of the licence.

I/We have forwarded a sum of Rs. _____ in respect of the license fee by way of Cheque/DD/online payment
(details of payment may be furnished)

Place: _____

Date: _____

(Signature(s) of the Applicant(s))

FORM- B

(See Section 8(3))

LICENSE UNDER THE ANDHRA PRADESH ANIMAL FEED (REGULATION OF MANUFACTURE, QUALITY CONTROL, SALE AND DISTRIBUTION) ACT, 2020

This license shall be displayed in a prominent and conspicuous place of business premises

1. Name and Address of License holder:

2. License Number:

3. Address of the Place of Business/Manufacturing facility:

4. License valid from _____

_____ to

5. Description of the Animal feed to manufacture or process(as defined in the Act)

S.No.

Name of the item

Category

Quantity (MT/month)

6. Description of the Packing/labelling to use to manufacture or process animal feed

S.No.

Name of the item

Category

Pack size/size

Packing material used

License is granted to manufacture or sell or distribute or exhibit the above animal feeds subject to the provisions of the LICENSE UNDER THE Andhra Pradesh Animal feed (Regulation of Manufacture, Quality control, Sale and Distribution) Act,2020:

The License holder shall comply with all the directions and conform to the specifications issued by the Licensing Authority from time to time.

Terms and Conditions of Licence:-

1. This license shall be displayed in a prominent and conspicuous place in a part of the business premises open to public.

2. The licensee shall comply with the provisions of the Andhra Pradesh Animal feed (Regulation of Manufacture, Quality control, Sale and Distribution) Act,2020 and the rules and orders made there under.

3. The license shall come into force immediately and be valid for a period of three years from the date on which it is granted, unless sooner cancelled or suspended.

4. The licensee shall, from time to time, report to the licensing authority any change in the premises of his business of manufacturing or Processing the feed.

Place: _____

Date: _____

(Licensing Authority)

FORM- D

PRINTED FORMAT ON PACKAGE

(See Section 17(i))

- (Packing, Marking & Labelling)

Livestock, Poultry & Pet animal feed

Type of Feed and label of animal to be fed:

Date of Manufacture and Best Before Use:

Name and Address of Manufacturer:

License Number:

Batch No:

Net Weight:

Nutrient composition

Moisture, percent by mass, Max.

Crude protein (N x 6.25), percent by mass, Min.

Crude fat, percent by mass, Min.

Crude fibre, percent by mass, Max.

Acid insoluble ash, percent by mass, Max.

1. This feed does not contain urea or any other non-protein nitrogen compounds including ammonium salts for small ruminants, poultry and pet animal feed.

2. This feed does not contain harmful substances.

FORM- E

PRINTED FORMAT ON PACKAGE

(See Section 17(ii))

- (Packing, Marking & Labelling)

Mineral Mixture:

Type of mineral mixture and label of animal to be fed:

Date of Manufacture and Best Before Use:

Name and Address of Manufacturer:

License Number:

Batch No:

Net Weight:

Mineral element composition

Moisture (%), Max.

Calcium (%), Min.

Phosphorus (%), Min.

Magnesium (%), Min.

Sulphur (%)

Copper (%), Min.

Zinc (%), Min.

Manganese (%), Min.

Iron (%), Min.

Iodine (%), Min.

Cobalt (%), Min.

Fluorine (%), Max.

Acid insoluble ash (%), Max.

Lead (ppm), Max.

Arsenic (ppm), Max.

Total ash (%)

Salt (%) Min.

1. This mineral mixture does not contain ingredients of animal origin such as meat & bone meal, calcinated bone meal, di-calcium phosphate of animal Origin etc.,

2. This mineral mixture does not contain marble powder, dolomite powder, ferric oxide, cupric oxide, manganese dioxide, unprocessed rock phosphate, etc.,

FORM- T

YEARLY RETURN

(See Section 46)

Particular

Opening stock

Production/ Purchases

Sold/ distribution

Closing stock

Cattle feed

Calf starter

TMR /Silage

Broiler Starter Feed

Broiler Finisher Feed

Chick Feed

Layer Feed

Mineral mixture

Pet animal Feed

Any other

I hereby confirm that the above-mentioned information is factually correct.

Place: _____

Date: _____

(Signature of the License certificate holder)

Schedule II

SPECIFICATIONS AND STANDARDS FOR ANIMAL FEEDS

SPECIFICATIONS FOR COMPOUNDED FEEDS FOR YOUNG STOCK Indian Standard (IS 5560: 1970)

(Reaffirmed 1980) (Reaffirmed 2004)

S.No

Characteristic

Requirement

Method of Test

(Ref to)

Calf starter

meal

Calf growth

meal

1.

Moisture, percent by weight, Max.

10

10

Cl.No.4 of IS 7874,Part 1:1975

2.

Crude protein*(N*6.25), percent by weight

23-26

22-25

Cl.No.5 of IS 7874,Part 1: 1975

3.

Crude fat, percent by weight, Min.

4.0

3.0

Cl.No.7 of IS 7874,Part 1: 1975

4.

Crude fiber, percent by weight, Max.

7

10

Cl.No.8 of IS 7874,Part 1: 1975

5.

Acid insoluble ash, percent by weight, Max.

2.5

3.5

Cl.No.10 of IS 7874,Part 1: 1975

6.

Total ash, percent by weight, Max.

5.0

5.0

Annex C of IS 5470:2002

7.

Common salt, percent by Weight, Max.

1.0

1.5

IS 7874 (Part 2)1975,Cl.No.4

8.

Calcium (as Ca), percent by weight, Min

1.2

1.2

IS 13433 (Part1/Part 2)1992

9.

Phosphorus (as P), percent by weight, Min.

0.8

0.8

IS 7874 (Part 2)1975,Cl.No.6 or 1IS 14828:2000

10.

Vitamin A, IU/kg

10000

5000

ISO 14565:2000

11.

Total digestible nutrients, percent by weight ,Min.

75

65

12.

Digestible crude protein, percent by weight, Min.

17

16.5

Note 1: The values for requirements (2) to (14) are on moisture-free basis.

Note 2: For routine analysis, the characteristics mentioned above may be tested by Near

Related AI tags, queries and research notes

Translation